

# Senior Citizens Act, 2006

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Senior Citizens Act, 2063 (2006)

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Amending Acts

1. Some Nepal Acts Amending Act, 2072 (2015) 2072.11.13
2. Act Amending Some Nepal Acts relating to the Civil Code, 2075 (2018) 2076.1.2
3. Act Amending Some Acts relating to Sexual Violence, 2079 (2022) 2079.3.31
4. Senior Citizens (First Amendment) Act, 2079 (2022) 2079.05.05

Preamble: Whereas it is desirable to make immediate provisions relating to the protection and social security of senior citizens, and to enhance respect, reverence and goodwill towards them by making proper use of their knowledge, skill, capability and experience,

Therefore, in the first year after the promulgation of the Declaration of the House of Representatives, 2063 (2006), the House of Representatives has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Senior Citizens Act, 2063 (2006)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Senior Citizen" means a Nepali citizen who has completed sixty years of age.

(b) "Helpless Senior Citizen" means a senior citizen in any or all of the following conditions:-

(1) Having no basis for livelihood, source of income or property,

(2) Having no family member to provide maintenance, care and support,

(3) Having a family member, but being compelled to live a neglected or despised life without maintenance from such member.

(c) "Disabled Senior Citizen" means a senior citizen who is physically or mentally disabled.

(d) "Care Centre" means a home, shelter or other structure of a similar nature established and operated in accordance with this Act for the maintenance, care and support of senior citizens, whether for a fee or free of charge.

(e) "Day Service Centre" means a home, shelter or other structure of a similar nature established and operated in accordance with this Act for the care of senior citizens during the daytime, whether for a fee or free of charge.

(f) "Maintenance, Care and Support" means actions such as providing arrangements for senior citizens to eat, clothe, reside, move around, recreate, engage in religious activities, and receive health services. Added

by the First Amendment.(f1) "Offspring" means a person who has obtained the status of offspring pursuant to the prevailing law. Added by the First Amendment.(f2) "Service Centre" means a Senior Citizen Service Centre pursuant to Section 20A, and the term also includes a Care Centre, Knowledge and Skill Transfer Centre, shelter, or other government structure of a similar nature established at all three levels for the care and protection of senior citizens.

Added by the First Amendment.(f3) "Local Level" means a Rural Municipality or Municipality.

(g) "Family Member" means the following relatives of a senior citizen:-

(1) Son, daughter-in-law, daughter, grandson, granddaughter living in a joint family,

(2) If there are no members as per sub-clause (1), then son, daughter-in-law, daughter, grandson, granddaughter living separately, grandson and granddaughter from the daughter's side,

(3) If there are no relatives as per sub-clause (2), then other close relatives. Amended by the First Amendment.(h) "Successor" means a successor entitled to the estate of a senior citizen pursuant to the chapter relating to inheritance under the Civil Code, 2074 (2017).

(i) "Senior Citizen Club" means a club established by senior citizens pursuant to the prevailing law for the protection of their rights and interests.

(j) "Fund" means the Senior Citizens Welfare Fund established pursuant to Section 17.

(k) "Prescribed Officer" means an officer designated by the Government of Nepal by publishing a notice in the Nepal Gazette.

(l) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules or regulations made under this Act. 3. Senior Citizens to be Respected: It shall be the duty of all to respect senior citizens. 4. Maintenance, Care and Support of Senior Citizens: (1) It shall be the duty of every family member to maintain, care for and support a senior citizen according to their financial status and dignity.

(2) A senior citizen who has taken their share and lives or wishes to live separately from the family shall be maintained, cared for and supported by the family member chosen by them, keeping them in their own company.

(3) No one shall force a senior citizen to live separately from the family against their will or compel them to live apart.

(4) If the financial condition of the senior citizen or the family member maintaining them is weak, other family members shall make arrangements for the maintenance, care and support of such senior citizen even if they do not keep them with themselves. Added by the First Amendment.(4A) Special protection and social security shall be provided as prescribed to promote the best interests of a helpless senior citizen.

(5) Notwithstanding anything contained elsewhere in this section, any family member, relative or successor who uses or enjoys the movable or immovable property of a senior citizen shall keep that senior citizen with themselves and provide maintenance, care and support. 5. Omitted by the First Amendment.

May Lodge Complaint: (1) Where a family member, relative or successor having the duty to maintain, care for and support a senior citizen pursuant to Section 4 fails to keep such senior citizen with themselves and provide maintenance, care and support, or fails to make such arrangement, such senior citizen may lodge a complaint with the concerned Amended by Some Nepal Acts Amending Act, 2072 (2015).Ward Chairperson

of the Rural Municipality or Municipality for maintenance, care and support. Also, if any neighbor believes that maintenance, care and support of a senior citizen in their neighborhood is not adequate, such neighbor may also lodge a complaint along with reasons. (2) Upon receipt of any complaint under sub-section (1), the Ward Chairperson shall conduct necessary inquiry and attempt to reconcile between the senior citizen and the family member, relative or successor who is required to maintain, care for and support them. (3) If reconciliation cannot be made under sub-section (2), the Ward Chairperson may issue a written order to the family member, relative or successor to maintain, care for and support such senior citizen. (4) An order issued by the Ward Chairperson under sub-section (3) shall be caused to be posted on the notice board of the concerned Ward Office and other suitable places. (5) A party dissatisfied with the order issued by the Ward Chairperson under sub-section (3) may file a petition with the concerned Amended by Some Nepal Acts Amending Act, 2072 (2015).Judicial Committee of the Local Level within seven days from the date of receipt of such order. (6) Upon receipt of a petition under sub-section (5), the concerned Amended by Some Nepal Acts Amending Act, 2072 (2015).Judicial Committee of the Local Level may summon both parties, counsel them, and issue a written order to the family member, relative or successor to maintain, care for and support the senior citizen. (7) An order issued by the Amended by Some Nepal Acts Amending Act, 2072 (2015).Judicial Committee of the Local Level under sub-section (6) shall be caused to be posted on the notice board of the concerned Amended by Some Nepal Acts Amending Act, 2072 (2015).Rural Municipality or Municipality and other suitable places. (8) An order under sub-section (3) or (6) shall be complied with by the concerned person. If such person fails to comply with such order, notwithstanding anything contained in the prevailing law, the Ward Chairperson, Added by the First Amendment.Chairperson of the Rural Municipality or Mayor of the Municipality shall be bound not to make any recommendation on any matter in relation to such person.

Added by the First Amendment.(9) If a complaint is lodged at the Local Level regarding a person who fails to comply with an order under sub-section (3) or (6) and who has enjoyed the property of such senior citizen, the Judicial Committee may entrust the movable or immovable property standing in the name of the senior citizen to the relative or successor who maintains, cares for and supports the senior citizen instead of such person. Added by the First Amendment.(10) Notwithstanding anything contained elsewhere in this section, the Local Level shall make arrangements to place a senior citizen who is not maintained, cared for or supported by family members, relatives or successors, or who is in an abandoned state without any other successor or relative to care for them, in a Care Centre for maintenance, care and support. If such a senior citizen who is not maintained, cared for or supported or is in an abandoned state has any property or share, the Local Level shall bring it under its ownership and mobilize it for the rights and interests of that senior citizen. 6. Right to Dispose Freely: A senior citizen shall have the right to freely dispose of their movable and immovable property and the accretions thereof, without being required to partition it pursuant to the prevailing law. 7. Services may be Obtained: The Government of Nepal or an institution established pursuant to prevailing law may obtain services from a senior citizen who has acquired special qualification or experience in any field, and such institution shall provide reasonable remuneration and facilities to such senior citizen in consideration of such services. 8. Not to Cause to Beg: (1) No one shall cause a senior citizen to beg. (2) A senior citizen shall not be made a sage, monk or fakir against their will. (3) . Added by the First Amendment.8A. Duty of the Local Level: (1) If the Local Level observes a problem in the livelihood of a senior citizen, it shall identify the financial income, status or earning capacity of such senior citizen's offspring or close successor and cause a prescribed amount to be deposited monthly into the account of the concerned senior citizen.

Provided that, in the case of a person without prescribed minimum income, it shall be the duty of the Local

Level to fulfill the minimum basic needs of the senior citizen.

(2) If the Local Level finds it necessary to take immediate action for the livelihood of a senior citizen before making a decision, the concerned Ward Chairperson shall, on an interim basis, considering the circumstances, cause the offspring or successor of such senior citizen to deposit a certain amount into the bank account of the concerned senior citizen.

(3) The amount under sub-sections (1) and (2) shall be deposited even if the offspring live with the parents or have already separated pursuant to law.

(4) Notwithstanding anything contained in sub-sections (1), (2) and (3), if a person's parents live in a joint family, the amount shall be deposited into the joint account of the parents, and if the parents live separately, it shall be deposited into the account of the father or mother whom they are required to maintain, care for and support.

(5) Notwithstanding anything contained in sub-sections (1), (2), (3) and (4), no amount or remuneration need be deposited for those parents who are receiving regular salary or pension, or whose annual income from self-employment, trade, business or any other type of earning exceeds the prescribed amount.

(6) A person having the duty to deposit the amount under sub-sections (1) and (2) shall inform the concerned Local Level and the body where they are employed, along with details and voucher or receipt of the amount deposited, within thirty-five days, and shall submit a statement of the amount deposited annually at the end of each fiscal year to the concerned Local Level.

(7) If a person having the duty to deposit the amount under this section fails to deposit the amount, the father or mother of such person may file an application with the body where such person is employed or with the Local Level for the implementation thereof.

(8) Upon receipt of an application under sub-section (7), the head of the body where the person having the duty to deposit the amount is employed shall order the concerned officer to deposit the salary or amount of such person.

(9) No one shall be exempted from the legal duty and practical responsibility required to be fulfilled under the prevailing law merely by reason of having deposited remuneration or amount to the parents under this section.

(10) Any amount deposited in the bank account in the name of the parents under this section shall be used by such parents for fulfilling their basic needs and other purposes, and the remaining amount after such expenses shall be spent on their funeral rites after their death.

(11) The Local Level may formulate and implement necessary procedures for the simple and expeditious hearing of applications and complaints received concerning senior citizens.

(12) If any amount remains in the bank account in the name of the parents even after the work under sub-section (10), such amount may be utilized by the family members who deposited it.

(13) The Local Level shall not compel offspring who were not provided with maintenance, care, education, or proper guardianship, or who were expelled from the home and family and raised without food and clothing, for any reason, to maintain or cause to maintain their senior citizen parents.

(14) For the purpose of providing service facilities to senior citizens by the State, the concerned Local Level

shall update and classify comprehensive details of senior citizens.

Additionally, the State may utilize and transfer the knowledge, skill and experience of senior citizens across generations, and it shall be the duty of the concerned person to make their knowledge, skill and experience available.

(15) Other provisions relating to the deposit of the amount under this section shall be as prescribed. Added by the First Amendment.8B. Not to Misbehave, Insult or Deceive: (1) No one shall misbehave with or insult a senior citizen, or cause them to be so treated.

(2) No one shall, with the intention of obtaining or consuming the movable or immovable property standing in the name of a senior citizen, or for any other purpose, take property by exerting any kind of pressure or by inducing deception or fraud, or cause it to be registered in one's own name or in the name of any other person. 9. Concessions and Facilities: (1) It shall be the duty of all to provide necessary services, facilities and assistance to senior citizens in public vehicles, public services, health services, religious and public places.

(2) In public vehicles of the type prescribed by the Government of Nepal by publishing a public notice, the concerned vehicle owner or operator shall reserve at least two seats for senior citizens and provide them a concession of at least fifty percent on the passenger fare.

(3) Every institution providing health services shall provide health services to senior citizens giving them priority.

(4) An institution providing health services designated by the Government of Nepal shall provide a concession of at least fifty percent on the fees chargeable to the prescribed number of senior citizens for treatment at such institution.

(5) Other institutions providing public services, including drinking water, electricity and telephone, shall give priority to senior citizens while providing services.

(6) In addition to the concessions and facilities mentioned in this section, the Government of Nepal may, from time to time, provide other concessions and facilities to senior citizens by publishing a notice in the Nepal Gazette. 10. Priority and Representation in Court Cases: (1) Notwithstanding anything contained in the prevailing law, a case in which only a senior citizen is a party or opponent shall be processed and decided by the court giving it priority.

(2) Notwithstanding anything contained in the prevailing law, while hearing a case in which only a helpless or disabled senior citizen is a party or opponent, the court shall do so only after appointing a legal practitioner to defend such senior citizen.

Added by the First Amendment.(2A) Senior citizens shall be provided legal assistance through the District Legal Aid Committee, subject to the prevailing law.

(3) If a senior citizen files a petition before the court stating that due to weak economic condition they are unable to appoint a legal practitioner to defend their case, the concerned court shall provide the services of a salaried legal practitioner for such senior citizen. Added by the First Amendment.(4) For the initial proceedings, hearing and disposal of a criminal offence committed by a senior citizen under this Act, the Government of Nepal may, upon the recommendation of the Judicial Council, constitute a Senior Citizen Bench. 11. Priority to be Given in Transactions: In any work concerning a senior citizen, the concerned body

shall give priority and complete such work or transaction. 12. Concession may be Granted in Imprisonment: (1) Notwithstanding anything contained in the prevailing law, a senior citizen who has been sentenced to imprisonment in a case instituted by the government and is serving such sentence may be granted a remission of imprisonment as follows, depending on the age and nature of the offence:-

(a) Up to twenty-five percent for a senior citizen who has completed sixty-five years of age but has not exceeded seventy years,

(b) Up to fifty percent for a senior citizen who has completed seventy years of age but has not exceeded seventy-five years,

(c) Up to seventy-five percent for a senior citizen who has completed seventy-five years of age. Added by the First Amendment.(1A) Notwithstanding anything contained in sub-section (1), such remission shall not be granted for an offence relating to rape, or for an offence of killing, maiming or causing bodily harm using acid or inflammable substance.

(2) Notwithstanding anything contained in the prevailing law, for a disabled senior citizen or a senior citizen who has completed seventy-five years of age and has been sentenced to imprisonment, the court may, considering the gravity of the offence, order that the senior citizen be kept in a Care Centre instead of being kept in prison. Added by the First Amendment.(2A) When a senior citizen is placed in a Care Centre under sub-section (2) in accordance with the court order, they shall be kept separate from other senior citizens.

(3) Other provisions relating to keeping in a Care Centre under sub-section (2) shall be as prescribed. 13.

Formation of "Central Senior Citizens Committee": (1) For the purpose of caring, looking after and providing social security to senior citizens, the Government of Nepal shall, by publishing a notice in the Nepal Gazette, form a "Central Senior Citizens Committee" as follows:- (a) Minister of Women, Children and Senior Citizens. (Current name: Ministry of Women, Children and Senior Citizens)Minister or State Minister for Women, Children and Senior Citizens - Chairperson (b) Member, National Planning Commission (looking after social services) - Member (c) Secretary, Ministry of Finance - Member (d) Secretary, Ministry of Home Affairs - Member (e) Secretary, "Ministry of Women, Children and Senior Citizens." (Current name: Ministry of Women, Children and Senior Citizens)Ministry of Women, Children and Senior Citizens. - Member (f) Secretary, Ministry of Health and Population - Member (g) Secretary, Ministry of Local Development (current name: Ministry of Federal Affairs and General Administration)Ministry of Federal Affairs and General Administration - Member (h) Vice-Chairperson, Social Welfare Council - Member (i) Omitted by Some Nepal Acts Amending Act, 2072 (2015) (j) Member Secretary, Pashupati Area Development Trust - Member (k) President, Nepal Medical Association - Member (l) President, Nepal Nursing Association - Member Added by the First Amendment.(11) President, National Senior Citizens Federation - Member (m) Two representatives, including at least one woman, nominated by the Government of Nepal from among institutions operating for the protection of the interests of senior citizens - Member (n) Two persons, including at least one woman, nominated by the Government of Nepal from among persons engaged in religious and social work - Member (o) Joint Secretary, "Ministry of Women, Children and Senior Citizens." (Current name: Ministry of Women, Children and Senior Citizens)Ministry of Women, Children and Social Welfare (looking after the concerned division) - Secretary (2) The term of office of the nominated members under clauses (m) and (n) of sub-section (1) shall be three years, and they shall be eligible for reappointment. Provided that, if they engage in misconduct or lack competence, the Government of Nepal may remove them before the expiry of their term. (3) The secretariat work of the "Central Senior Citizens Committee" shall be performed by the "Ministry of Women, Children and Senior Citizens." (4) The procedural rules for meetings of the "Central

Senior Citizens Committee" shall be as prescribed. (5) Members of the "Central Senior Citizens Committee" may receive allowances as determined by the Government of Nepal for participating in meetings of the Committee. 14.

Functions, Duties and Powers of the "Central Senior Citizens Committee": The functions, duties and powers of the "Central Senior Citizens Committee" shall be as follows:- (a) To prepare necessary policies, plans and programmes for the protection and social security of senior citizens and submit them to the Government of Nepal, (b) To implement and monitor policies, plans and programmes approved by the Government of Nepal, (c) To keep updated registers and records of senior citizens received from the "Local Senior Citizens Committee", Amended by the First Amendment.(d) To coordinate and monitor the work and activities of Provincial Senior Citizens Committees and Local Senior Citizens Committees, (e) To monitor the work and activities of Care Centres, Day Service Centres, "Service Centres", Senior Citizens Clubs and associations and organizations working on senior citizen matters established and operating throughout Nepal, (f) To perform other functions as prescribed. Added by the First Amendment.14A. Provincial Senior Citizens Committee: (1) For the purpose of caring, looking after and providing social security to senior citizens in each province, the provincial government may, by publishing a notice in the provincial gazette, form a Provincial Senior Citizens Committee. (2) Other provisions relating to the meeting and work procedures of the Provincial Senior Citizens Committee shall be as determined by provincial law. Amended by the First Amendment.15. Formation of Local Senior Citizens Committee: (1) For the purpose of caring, looking after and providing social security to senior citizens in each Local Level, the Local Level may, by publishing a notice in the local gazette, form a Local Senior Citizens Committee. (2) Provisions relating to the meeting and other work procedures of the Local Senior Citizens Committee shall be as determined by the Local Level. 16. Amended by the First Amendment.

Functions, Duties and Powers of the Local Level Senior Citizens Welfare Committee: The functions, duties and powers of the Amended by the First Amendment.Local Level Senior Citizens Welfare Committee shall be as follows:- (a) Amended by the First Amendment.To collect registers of senior citizens within the Local Level, maintain records, and update the registers and records, (b) Amended by the First Amendment.To prepare plans and programmes for the protection and social security of senior citizens within the Local Level and submit them to the "Central Senior Citizens Committee" for approval, (c) To implement and monitor the Amended by the First Amendment.Local Level level programmes according to the policies, plans and programmes relating to the protection and social security of senior citizens approved by the Government of Nepal, (d) Amended by the First Amendment.To monitor the work and activities of Care Centres, Day Service Centres, Senior Citizens Clubs and other associations and organizations working on the protection and social security of senior citizens established and operating in the Local Level, (e) To mobilize local community organizations to carry out work relating to the protection and social security of senior citizens, (f) To make arrangements for the distribution of allowances or facilities receivable by senior citizens under Section 24, (g) To perform other functions as prescribed.

17. "Senior Citizens Fund": (1) A Senior Citizens Welfare Fund shall be established for the protection and social security of senior citizens.

(2) The Fund under sub-section (1) shall consist of the following amounts:-

(a) Amount received from the Government of Nepal,

(b) Amount received from foreign governments, foreign persons or international associations or organizations,

(c) Amount received from domestic persons or associations or organizations,

(d) Amount received from any other source.

(3) Before receiving the amount under clause (b) of sub-section (2), the "Central Senior Citizens Committee" shall obtain prior approval of the Government of Nepal.

(4) The amount in the Fund under sub-section (1) shall be deposited in an account opened in any commercial bank of the State of Nepal in the name of the Amended by the First Amendment."Central Senior Citizens Committee".

(5) The amount of the Fund under sub-section (1) shall be used only for the protection and social security of senior citizens.

(6) While using the amount of the Fund under sub-section (5), it shall be used through a Care Centre or Day Service Centre operated by an association or organization established by the Government of Nepal itself or established pursuant to the prevailing law.

(7) Notwithstanding anything contained elsewhere in this section, no amount from the Fund shall be given or distributed to any person for their personal purpose.

(8) The operation of the Fund under sub-section (1) shall be as prescribed. 18. Accounts and Audit: (1) The accounts of income and expenditure of the Fund shall be maintained according to the accounting system adopted by the Government of Nepal.

(2) The audit of the Fund shall be carried out by the Office of the Auditor General. 19. Preparation of Records: Amended by the First Amendment.The "Local Senior Citizens Committee" shall prepare records of senior citizens under this Act as prescribed. 20.

Establishment and Operation of Care Centre or Day Service Centre: (1) Amended by the First Amendment.The Government of Nepal, a provincial government or a Local Level, or any person or association or organization formed pursuant to the prevailing law may establish and operate a Care Centre or Day Service Centre or both in any place in the State of Nepal. (2) To establish and operate a Care Centre or Day Service Centre under sub-section (1), it shall be necessary to fulfill the prescribed infrastructure and obtain approval from the prescribed officer. (3) A Care Centre or Day Service Centre that is being operated by the private or non-governmental sector at the time of commencement of this Act shall obtain approval as prescribed from the officer under sub-section (2) within six months from the date of commencement of this Act. (4) A Care Centre may accommodate senior citizens, disabled senior citizens, helpless senior citizens, and senior citizens whom a court has ordered to be kept in a Care Centre under sub-section (2) of Section 12. (5) If any senior citizen wishes to reside in a Care Centre or Day Service Centre at their own expense, such centre shall accommodate such senior citizen according to its capacity. (6) If a family member is unable to keep with themselves a senior citizen whom they are required to maintain, care for and support themselves, such family member may place such senior citizen in any Care Centre. If they wish to do so, the concerned Care Centre may accommodate such senior citizen by charging expenses from such family member. (7) A Care Centre or Day Service Centre shall make arrangements for senior citizens residing there under sub-section (4), (5) or (6) to participate in religious, social, recreational or economic activities according to their interests, and to live in a family-like environment. (8) The standards of a Care Centre or Day Service Centre and other provisions relating to its operation shall be as prescribed. 20A.

Establishment and Operation of Senior Citizen Service Centre: Added by the First Amendment.(1) For the



care and protection of senior citizens, a Local Level may establish and operate a Senior Citizen Service Centre. (2) A Service Centre under sub-section (1) may operate income generating programmes as prescribed for senior citizens. (3) While engaging senior citizens in an income generating programme under sub-section (2), their physical and mental condition shall be considered. (4) A Service Centre may conduct training of a motivating kind for senior citizens, and awareness raising training and workshops relating to the health, nutrition and proper care of senior citizens. (5) A Service Centre shall not engage a senior citizen in programmes conducted under this section against their will. (6) A Service Centre shall work under the direction of the Central Senior Citizens Committee and Provincial Senior Citizens Committee and in coordination with the Local Senior Citizens Committee. (7) Other functions, duties, powers, standards and operational provisions of the Service Centre shall be as prescribed.

21. Information to be Given: (1) If any senior citizen is found in an abandoned state, it shall be the duty of every citizen to give information thereof to the nearest Care Centre or Day Service Centre or police office or Amended by Some Nepal Acts Amending Act, 2072 (2015). Rural Municipality or Municipality. (2) If the police find any senior citizen in an abandoned state, they shall entrust such senior citizen to the nearest Care Centre or Day Service Centre.

22. Funeral: If any senior citizen dies in a Care Centre, the concerned Care Centre shall make arrangements for the funeral of such senior citizen according to social tradition or according to the religious tradition desired by such senior citizen.

23. Provision Relating to Property: (1) If a senior citizen residing in a Care Centre under sub-section (5) of Section 20 dies, notwithstanding anything contained in the prevailing law, the remaining property of such deceased shall belong to the concerned Care Centre. (2) If a senior citizen placed in a Care Centre under sub-section (6) of Section 20 dies, such Care Centre shall deduct the expenses incurred for the care of such senior citizen and return the remaining amount to the family member or relative or successor.

24. May Provide Allowances or Facilities: The Government of Nepal may, by classifying senior citizens, helpless senior citizens, and disabled senior citizens on a prescribed basis, provide allowances or facilities as prescribed.

25. Provision of Identity Card: The Government of Nepal shall provide an identity card containing details as prescribed to a senior citizen through the Amended by the First Amendment. Rural Municipality or Municipality where the senior citizen resides. 25A.

26. Penalty: (1) If any person commits an offence under clause (a) of Section 25A, they shall be liable to a fine of up to three hundred thousand rupees.

(2) If any person commits an offence under clause (b) of Section 25A, they shall be liable to imprisonment for up to three months or a fine of ten thousand to thirty thousand rupees or both.

(3) If any person commits an offence under clause (c) of Section 25A, they shall be liable to imprisonment for up to one year or a fine of thirty thousand to ninety thousand rupees or both.

(4) If any person commits an offence under clause (d) of Section 25A, they shall be liable to imprisonment for one to five years or a fine of one hundred thousand to five hundred thousand rupees or both.

(5) If any person commits an offence under clause (e) of Section 25A, they shall be liable to imprisonment for up to three months or a fine of ten thousand to thirty thousand rupees or both, and if any property of a senior citizen has been taken or retained, such property shall be returned to the concerned senior citizen.

(6) If any person commits any act under clause (f) of Section 25A with a malicious intention to take the property of a senior citizen, they shall be liable to imprisonment for one to five years or a fine according to the amount misappropriated or both.

(7) The amount of fine under sub-section (1) shall be deposited in the bank account of the concerned

parents. 26A. Additional Penalty: Added by the First Amendment.(1) If a person holding a public office commits an offence under this Act, such person shall be liable to an additional thirty percent penalty on top of the penalty applicable to another person.

(2) Notwithstanding anything contained in the prevailing law, if any person commits any act against a disabled senior citizen or a senior citizen who has completed seventy-five years of age, which is deemed an offence under the prevailing law, such person shall be liable to an additional twenty-five percent penalty on top of the penalty provided by the prevailing law. Provided that this provision shall not apply where the penalty is life imprisonment.

(3) If a person who has been penalized under this Act again commits the act for which such penalty was imposed, such person shall be liable to an additional ten percent penalty for each subsequent occasion. Amended by the First Amendment.27.

Jurisdiction to Hear Cases: (1) The jurisdiction to hear a case under clause (a) of Section 25A shall lie with the Judicial Committee of the concerned Local Level. (2) Except as provided in sub-section (1), the jurisdiction for initial proceedings and disposal of an offence under this Act shall lie with the concerned District Court. 28. Appeal: A party dissatisfied with a judgment made pursuant to Section 27 may file an appeal with the concerned High Court within thirty-five days from the date of pronouncement of the decision. Amended by the First Amendment.29. Government to be Plaintiff: Except for the offence under clause (a) of Section 25A, cases relating to other offences under this Act shall be government cases, and such cases shall be deemed to be included in Schedule-1 of the Muluki Criminal Procedure Code, 2074 (2017). 30. May Issue Directions: Amended by the First Amendment.(1) The Government of Nepal may, from time to time, issue necessary directions to the Central Senior Citizens Committee, Provincial Senior Citizens Committee and Local Senior Citizens Committee. (2) It shall be the duty of the concerned Senior Citizens Welfare Committee to comply with the directions issued under sub-section (1). Amended by the First Amendment.31. Report to be Submitted: The Local Senior Citizens Committee shall submit an annual report of its work to the concerned Provincial Senior Citizens Committee and the Central Senior Citizens Committee within two months from the date of expiry of the fiscal year, the Provincial Senior Citizens Committee shall submit to the Central Senior Citizens Committee within two months, and the Central Senior Citizens Committee shall submit to the Ministry of Women, Children and Senior Citizens within three months from the date of expiry of the fiscal year. 32. Power to Make Rules and Regulations: (1) For the purpose of implementing the objectives of this Act, the Government of Nepal may make necessary rules. (2) Subject to this Act and the rules made under this Act, an institution operating a